

		Total amount of attorney fees granted \$35,471.50 Plaintiff is also entitled to “costs and expenses” incurred in pursuing his Song-Beverly Act claims and has filed a memorandum of costs seeking \$1,988.90. (See Civ. Code, § 1794, subd. (d); see also Sarbaz Decl. ¶ 9; Shumake Decl. at Ex. 9; ROA No. 121 [11/17/25 memorandum of costs].) Defendant has not filed a motion to tax costs to date and has not challenged any of the costs in its opposition to this motion. As such, all \$1,988.90 in costs and expenses are granted. (See <i>Douglas v. Willis</i> (1994) 27 Cal.App.4th 287, 289-290 [““failure to file a motion to tax costs constitutes a waiver of the right to object””].) Plaintiff shall give notice.
5.	The Designers NYC, LLC dba Little Big Brands vs. Brand Models & Talent, Inc. 21-01204721	Motion for Attorney Fees The motion by plaintiff The Designers NYC, Inc., dba Little Big Brands for attorney fees is DENIED. (Code Civ. Proc., § 1021 [“Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties”]; <i>Trope v. Katz</i> (1995) 11 Cal.4th 274, 278 [“California follows what is commonly referred to as the American rule, which provides that each party to a lawsuit must ordinarily pay his own attorney fees”].) Moving party cites no authority allowing it to recover attorney fees incurred in this action. Moving party did not sue for breach of contract, and cites no authority allowing fees under Civ. Code, § 3300. Further, this Court effectively determined that moving party was 67% at fault for the damages incurred in settling the underlying litigation. (Scheper Decl. in support of motion, ¶ 7 [“the Court found Plaintiff incurred \$90,000 in settlement and \$28,000 in legal fees and costs, totaling \$118,000, of which it awarded \$38,940”]; see also Ruling and Statement of Decision [ROA 245], § V “Damages” [apportioning 33% of liability to defendant].) Thus, moving party has not shown that “the trier of fact determined that the indemnitee was without fault in the principal case which is the basis for the action in indemnity.” (Code Civ. Proc., § 1021.6, subd. (c).) Defendant Brand Models and Talent, Inc. shall give notice.